

1 ENGROSSED HOUSE
2 BILL NO. 2588

By: Staires of the House

3 and

4 Rader of the Senate

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7 An Act relating to owners associations; amending 60
8 O.S. 2021, Section 854, which relates to owners
9 association membership; requiring owners association
10 board members to be recorded owners of property and
11 physically reside in the real estate development that
the owners association governs; defining term;
providing for automatic resignations of board members
under certain circumstances; and providing an
effective date.

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14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 60 O.S. 2021, Section 854, is
16 amended to read as follows:

17 Section 854. A. Membership of said owners association shall
18 consist of recorded owners of separately owned lots in the real
19 estate development. Membership is transferred upon legal transfer
20 of title to the separately owned lots. The owners association may
21 also enforce the covenant and restrictions of the real estate
22 development when specified by the covenants and restrictions.

23 B. Board members of an owners association, after the real
24 estate developer relinquishes control of the owners association,

1 shall consist of members of said owners association who are current
2 recorded owners of lots in the real estate development.
3 Furthermore, owners association board members shall physically
4 reside in the real estate development that is governed by said
5 owners association. For purposes of this act, a board member of
6 said owners association is deemed to "physically reside" in the real
7 estate development if the member maintains an address for personal
8 income tax purposes at a home or dwelling within the owners
9 association, and the member inhabits and maintains the home or
10 dwelling located at that address within the owners association as
11 the fixed, permanent, and principal home of the member for at least
12 ten (10) months, in the aggregate, during each calendar year in
13 which the member serves on the board. If at any time after the
14 member is elected to serve as a board member the member fails to
15 meet or no longer meets the requirements of physically residing in
16 the real estate development, that board member shall be deemed to
17 have automatically resigned his or her position as a board member.

18 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 25th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate